

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3443 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____
Amendment submitted by: Jonathan Wilk _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3443

By: Wilk

FLOOR SUBSTITUTE

An Act relating to transportation; authorizing the modification of certain permit fees; requiring use of certain formula for calculation; amending 47 O.S. 2021, Section 14-103, as amended by Section 3, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-103), which relates to width, height, and length of vehicle and load; modifying certain fee; amending 47 O.S. 2021, Section 14-103G, as amended by Section 7, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-103G), which relates to oversize or overweight permits; modifying certain fees; 47 O.S. 2021, Section 14-109, as amended by Section 8, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-109), which relates to load limits; modifying certain fees; amending 47 O.S. 2021, Section 14-116, as amended by Section 9, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-116), which relates to permit fees; modifying certain fees; amending 47 O.S. 2021, Section 14-118, as amended by Section 11, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-118), which relates to motor carriers; modifying certain fees; amending 47 O.S. 2021, Section 14-120, as amended by Section 13, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-120), which relates to movement of certain manufactured items; modifying certain fees; amending 47 O.S. 2021, Section 14-121, as amended by Section 16, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-121), which relates to special combination vehicles; modifying certain fees; amending 69 O.S. 2021, Section 1521, as amended by Section 1, Chapter 460, O.S.L. 2025; relating to the Rebuilding Oklahoma Access and Driver Safety Fund; removing certain restrictions on funds;

1 providing for codification; and providing an
2 effective date.

3
4 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

5 SECTION 1. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 14-127 of Title 47, unless there
7 is created a duplication in numbering, reads as follows:

8 The Oklahoma Department of Transportation is authorized to
9 increase any oversize or overweight related permit fees found in its
10 administrative rules including, but not limited to:

11 1. Special Overheight Trailer Permit for Limited Travel Thirty-
12 day (30-day) Permit;

13 2. Longer Combination Annual Permit; and

14 3. Special Overheight Trailer Permit for Limited Travel Annual
15 Permit. The Department shall use a formula for calculating the
16 changes to the fees using a cost of living adjustment through the
17 year 2024.

18 SECTION 2. AMENDATORY 47 O.S. 2021, Section 14-103, as
19 amended by Section 3, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
20 Section 14-103), is amended to read as follows:

21 Section 14-103. A. Except as otherwise provided for by this
22 chapter, no vehicle, with or without load, shall have a total
23 outside width in excess of one hundred two (102) inches excluding:

24 1. Tire bulge;

2. Approved safety devices;

3. A retracted awning with a width of eight (8) inches or less or other appurtenance of four (4) inches or less which is attached to the side of a recreational vehicle, as defined in Section 1102 of this title; and

4. Pins used as a safety precaution or as a load-assisting device if the pins do not extend the overall width of the vehicle beyond nine (9) feet. The State of Oklahoma hereby declares it has determined, in accordance with 23 C.F.R., Section 658.15, that such pins are necessary for the safe and efficient operation of motor vehicles.

The provisions of this subsection shall not apply to any person engaged in the hauling of round baled hay with a total outside width of eleven (11) feet or less when the hay is owned by such person and is being hauled for any purpose other than resale. The provisions of this subsection shall also not apply to any county official or employee engaged in the hauling or pulling of a trailer or equipment owned by the county on the county roads of such county.

B. Except as otherwise provided for by this chapter:

1. No vehicle, with or without load, shall exceed a height of thirteen and one-half (13 1/2) feet on any county road, or fourteen (14) feet on any turnpike, interstate, U.S. or state highway, unless a greater height is authorized by a special permit issued by the Executive Director of the Department of Transportation or an

1 authorized representative of the Department of Transportation
2 specifying the highways to be used, consistent with public
3 convenience and safety. The prohibitions on movement as prescribed
4 in subsection F of Section 14-101 of this title and paragraph 1 of
5 subsection G of Section 14-101 of this title shall not apply to
6 vehicles operated pursuant to such permits;

7 2. An official state bridge vertical clearance map providing
8 clearance heights as posted for bridges on the interstate, U.S. and
9 state highway systems shall be available on the Oklahoma Department
10 of Transportation website; and

11 3. Operators and owners of vehicles which exceed or have loads
12 which exceed thirteen and one-half (13 1/2) feet shall be held
13 liable for all damages to any part of structures spanning the
14 highway or damages suffered by other affected parties caused by the
15 vehicle or load exceeding the posted height.

16 C. Except as otherwise provided for by this chapter:

17 1. No single truck, with or without load, shall have an overall
18 length, inclusive of front and rear bumpers, in excess of forty-five
19 (45) feet;

20 2. No single bus, with or without load, shall have an overall
21 length, inclusive of front and rear bumpers, in excess of forty-five
22 (45) feet;

23 3. a. On the National Network of Highways which includes the
24 National System of Interstate and Defense Highways and

1 four-lane divided Federal Aid Primary System Highways,
2 no semitrailer operating in a truck-
3 tractor/semitrailer combination shall have a length
4 greater than fifty-three (53) feet, except as provided
5 in subsection C of Section 14-118 of this title which
6 shall apply to semitrailers exceeding fifty-three (53)
7 feet but not exceeding fifty-nine (59) feet six (6)
8 inches. On the National System of Interstate and
9 Defense Highways and four-lane divided Federal Aid
10 Primary System Highways, no semitrailer or trailer
11 operating in a truck-tractor/semitrailer and trailer
12 combination shall have a length greater than fifty-
13 three (53) feet;

- 14 b. On roads and highways not a part of the National
15 System of Interstate and Defense Highways or four-lane
16 divided Federal Aid Primary System Highways, no
17 semitrailer operating in a truck-tractor/semitrailer
18 combination shall have a length greater than fifty-
19 three (53) feet and no semitrailer or trailer
20 operating in a truck-tractor/semitrailer and trailer
21 combination shall have a length greater than twenty-
22 nine (29) feet. Except as provided for in subsection
23 D of Section 14-118 of this title, no other
24 combination of vehicles shall have an overall length,

1 inclusive of front and rear bumpers, in excess of
2 seventy (70) feet on all roads and highways. For the
3 purposes of this paragraph, oil field rig-up trucks
4 shall be considered to be truck-tractors, when towing
5 a trailer or semitrailer;

6 c. On the National Network of Highways the overall length
7 limitation of a towaway trailer transporter
8 combination may exceed length restrictions up to
9 eighty-two (82) feet;

10 d. As used in this section:

11 (1) The term "trailer transporter towing unit" shall
12 mean a power unit that is not used to carry
13 property when operating in a towaway trailer
14 transporter combination, and

15 (2) The term "towaway trailer transporter
16 combination" shall mean a combination of vehicles
17 consisting of a trailer transporter towing unit
18 and two (2) trailers or semitrailers with a total
19 weight that does not exceed twenty-six thousand
20 (26,000) pounds; and in which the trailers or
21 semitrailers carry no property and constitute
22 inventory property of a manufacturer, distributor
23 or dealer of such trailers or semitrailers;

1 4. No combination of vehicles shall consist of more than two
2 units, except:

3 a. one truck and semitrailer or truck-tractor/semitrailer
4 combination may tow one complete trailer or
5 semitrailer, or

6 b. vans, suburbans, blazers or other similar types of
7 vehicles and self-propelled recreational vehicles with
8 a three-quarter (3/4) ton or more rated capacity may
9 tow a semitrailer and one complete trailer or
10 semitrailer for recreational purposes only, provided
11 the overall length, inclusive of the front and rear
12 bumpers, does not exceed sixty-five (65) feet;

13 5. Poles and gas lines used to maintain public utility
14 services, not to include new construction, may be moved during
15 daylight hours, and during nighttime hours only in an emergency,
16 subject to traffic and road restrictions promulgated by the
17 Executive Director of the Department of Transportation, when the
18 overall length does not exceed eighty (80) feet. When this length
19 is exceeded, these loads are subject to the requirements of Section
20 14-118 of this title;

21 6. For the purposes of paragraphs 1, 3, and 4 of this
22 subsection, the length of unitized equipment, which is defined to be
23 equipment so constructed and attached to a rubber-tired vehicle that
24 the vehicle and load become a unit and are for all practical

1 purposes inseparable, shall be the length of the vehicle itself, and
2 shall not include any protrusion of the equipment load so
3 constructed or attached. The equipment shall not protrude for a
4 distance greater than two-thirds (2/3) of the wheel base of the
5 vehicle, shall not impair the driver's vision, and if less than
6 seven (7) feet above the roadway, shall be safely marked, flagged or
7 illuminated. Any such protruding structure shall be securely held
8 in place to prevent dropping or swaying. Unitized equipment shall
9 carry such safety equipment as shall be determined to be necessary
10 for the safety, health, and welfare of the driving public by the
11 Executive Director of the Department of Transportation;

12 7. For the purposes of paragraphs 1, 3, and 4 of this
13 subsection, a truck-tractor, when being towed by another vehicle
14 with the wheels of its steering axle raised off the roadway, shall
15 be considered to be a semitrailer as defined in Section 1-162 of
16 this title;

17 8. The provisions of paragraphs 1 and 3 of this subsection
18 shall not apply to any contractor or subcontractor, or agents or
19 employees of any contractor or subcontractor, while engaged in
20 transporting material to the site of a project being constructed by,
21 for, or on behalf of this state or any city, town, county, or
22 subdivision of this state; and

23 9. Special mobilized machinery, as defined in Section 1102 of
24 this title, which exceeds the size provisions of this section shall

1 only use the highways of this state by special permit issued by the
2 Executive Director of the Department of Transportation or an
3 authorized representative of the Executive Director of the
4 Department of Transportation. Such special permit shall be:

5 a. a single-trip permit issued under the provisions of
6 Section 14-116 of this title, or

7 b. a special annual oversize permit issued for one (1)
8 calendar year period upon payment of a fee of ~~Ten~~
9 ~~Dollars (\$10.00)~~ Fifteen Dollars (\$15.00) plus any
10 amount as provided by subsection H of Section 14-118
11 of this title.

12 SECTION 3. AMENDATORY 47 O.S. 2021, Section 14-103G, as
13 amended by Section 7, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
14 Section 14-103G), is amended to read as follows:

15 Section 14-103G. A. 1. The Department of Transportation may
16 issue an annual vehicle permit under the provisions of this
17 subsection to a specific vehicle, for the movement of oversize or
18 overweight loads that cannot reasonably be dismantled. Unless
19 otherwise provided by law, permits issued under this subsection
20 shall be subject to the conditions described in paragraphs 2 through
21 8 of this subsection.

22 2. Oversize or overweight loads operating under an annual
23 vehicle permit shall not exceed:

24 a. twelve (12) feet in width,

- b. fourteen (14) feet in height,
- c. one hundred ten (110) feet in length, or
- d. one hundred twenty thousand (120,000) pounds gross weight.

3. Oversize or overweight loads operating under an annual vehicle permit under this subsection shall not transport a load that has more than a twenty-five-foot front overhang, or more than a thirty-foot rear overhang.

4. The fee for an annual vehicle permit shall be ~~Four Thousand Dollars (\$4,000.00)~~ Five Thousand Four Hundred Forty Dollars (\$5,440.00) and shall be nonrefundable.

5. The annual vehicle permit shall be issued for one (1) calendar year period and shall commence upon the date specified on the permit.

6. An annual vehicle permit issued pursuant to this subsection shall be nontransferable between permittees.

7. The permitted vehicle or vehicle combination shall be registered in accordance with the provisions of Chapter 14 of this title for maximum weight.

8. An annual vehicle permit issued pursuant to this subsection may be transferred from one vehicle to another vehicle in the fleet of the permittee provided:

- a. the permitted vehicle is destroyed or otherwise becomes permanently inoperable to the extent that the

1 vehicle will no longer be utilized, and the permittee
2 presents proof to the Department of Transportation
3 that the negotiable certificate of title or other
4 qualifying documentation has been surrendered to the
5 Department of Transportation, or

6 b. the certificate of title to the permitted vehicle is
7 transferred to someone other than the permittee, and
8 the permittee presents proof to the Department of
9 Transportation that the negotiable certificate of
10 title or other qualifying documentation has been
11 transferred from the permittee.

12 9. A permit issued for loads specific to turbine blades, used
13 for the purpose of wind generation, may exceed a length of one
14 hundred ten (110) feet.

15 B. 1. The Department of Transportation may issue an annual
16 vehicle permit under this subsection to a specific motor carrier,
17 for the movement of oversize or overweight loads that cannot
18 reasonably be dismantled. An annual vehicle permit issued under
19 this subsection may be transferred from one vehicle to another
20 vehicle in the fleet of the permittee provided:

21 a. that no more than one vehicle is operating at a time,
22 and
23
24

1 b. the original certified permit is carried in the
2 vehicle that is being operated under the terms of the
3 permit.

4 2. An annual vehicle permit issued under this subsection shall
5 be sent to the permittee via first-class, registered mail, or at the
6 request and expense of the permittee via overnight delivery service.
7 The annual vehicle permit shall not be duplicated. The annual
8 vehicle permit shall be replaced only if:

9 a. the permittee did not receive the original permit
10 within seven (7) business days after the date of
11 issuance,

12 b. a request for replacement is submitted to the
13 Department of Transportation within ten (10) business
14 days after the original date of issuance of the
15 permit, and

16 c. the request for replacement is accompanied by a
17 notarized statement signed by a principal or officer
18 of the permittee acknowledging that the permittee
19 understands the permit may not be duplicated and that
20 if the original permit is located, the permittee shall
21 return either the original or replacement permit to
22 the Department of Transportation.

23 3. A request for replacement of an annual vehicle permit issued
24 pursuant to the provisions of this subsection shall be denied if the

1 Department of Transportation can verify that the permittee received
2 the original annual vehicle permit.

3 4. Lost, misplaced, damaged, destroyed or otherwise unusable
4 annual vehicle permits shall not be replaced. A new permit shall be
5 required and shall be issued by the Department of Transportation.

6 C. 1. The Department of Transportation may issue an annual
7 fleet permit under this subsection to an electric utility, regulated
8 by the Corporation Commission or a rural electric cooperative solely
9 for the movement of poles. An annual fleet permit issued under this
10 subsection may be used by any vehicle in the fleet of the permittee
11 provided that a certified copy of the permit is carried in each
12 vehicle that is being operated under the terms of the permit.

13 2. Oversize loads operating under an annual permit issued
14 pursuant to this subsection shall not exceed:

- 15 a. twelve (12) feet in width,
- 16 b. fourteen (14) feet in height, or
- 17 c. fifty-five (55) feet in length.

18 3. The annual fee for an annual fleet permit issued pursuant to
19 this subsection shall be ~~Four Thousand Dollars (\$4,000.00)~~ Five
20 Thousand Two Hundred Seventy Dollars (\$5,270.00) and shall be
21 nonrefundable.

22 4. The annual fleet permit shall be issued for a one-calendar-
23 year period and shall commence upon the date specified on the
24 permit.

1 5. The annual fleet permit issued under this subsection shall
2 be sent to the permittee via first class, registered mail, or at the
3 request and expense of the permittee via overnight delivery service.

4 The annual permit shall be replaced only if:

- 5 a. the permittee did not receive the original permit
6 within seven (7) business days after the date of the
7 issuance,
- 8 b. a request for replacement is submitted to the
9 Department of Transportation within ten (10) business
10 days after the original date of issuance of the
11 permit, and
- 12 c. the request for replacement is accompanied by a
13 notarized statement signed by an authorized person of
14 the permittee acknowledging that if the original
15 permit is located, the permittee shall either return
16 the original or replacement permit to the Department
17 of Transportation.

18 6. A request for replacement of an annual permit issued under
19 the provisions of this subsection shall be denied if the Department
20 of Transportation can verify the permittee received the original
21 annual permit.

22 7. Lost, misplaced, damaged, destroyed or otherwise unusable
23 annual permits shall not be replaced. A new permit shall be
24 required and shall be issued by the Department of Transportation.

1 8. For the purposes of paragraph 5 of subsection C of Section
2 14-103 of this title, the term "emergency" means any permitted
3 movement of poles pursuant to the provisions of this subsection that
4 is not for new construction of electric distribution facilities.

5 D. 1. The Department of Transportation shall issue an annual
6 vehicle permit under this subsection to a transportation company or
7 manufacturer of portable buildings solely for the movement of
8 oversize portable buildings for a specific manufacturer of portable
9 buildings. An annual vehicle permit issued under this subsection
10 may not be transferred from one vehicle to another vehicle in the
11 fleet. The name of the manufacturer shall be on the permit and on
12 any portable building being moved. The original certified permit
13 shall be carried in the vehicle that is being operated under the
14 terms of the permit.

15 2. Oversize loads operating under an annual vehicle permit
16 issued pursuant to this subsection shall not exceed:

- 17 a. twelve (12) feet in width at the wall with no more
18 than a three-inch-eave overhang, or
19 b. fourteen (14) feet in height.

20 3. The total gross weight of oversize loads operating under an
21 annual vehicle permit issued pursuant to this subsection shall not
22 exceed forty-five thousand (45,000) pounds.

23 4. The tow vehicle shall be limited to two axles, and the
24 vehicle identification number of the vehicle shall be on the permit.

1 5. The fee for an annual vehicle permit issued pursuant to this
2 subsection shall be ~~Five Hundred Dollars (\$500.00)~~ Six Hundred Sixty
3 Dollars (\$660.00) and shall be nonrefundable.

4 6. An annual vehicle permit issued under this subsection shall
5 be sent to the permittee via first-class, registered mail, or at the
6 request and expense of the permittee via overnight delivery service.
7 The annual vehicle permit shall not be duplicated. The annual
8 vehicle permit shall be replaced only if:

9 a. the permittee did not receive the original permit
10 within seven (7) business days after the date of
11 issuance,

12 b. a request for replacement is submitted to the
13 Department of Transportation within ten (10) business
14 days after the original date of issuance of the
15 permit, and

16 c. the request for replacement is accompanied by a
17 notarized statement signed by a principal or officer
18 of the permittee acknowledging that the permittee
19 understands the permit may not be duplicated and that
20 if the original permit is located, the permittee shall
21 return either the original or replacement permit to
22 the Department of Transportation.

23 7. A request for replacement of an annual vehicle permit issued
24 pursuant to the provisions of this subsection shall be denied if the

1 Department of Transportation can verify that the permittee received
2 the original annual vehicle permit.

3 8. A lost, misplaced, damaged, destroyed, or otherwise unusable
4 annual vehicle permit shall be replaced for a fee of ~~Twenty-five~~
5 ~~Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00).

6 SECTION 4. AMENDATORY 47 O.S. 2021, Section 14-109, as
7 amended by Section 8, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
8 Section 14-109), is amended to read as follows:

9 Section 14-109. A. On any road or highway:

10 1. No single axle weight shall exceed twenty thousand (20,000)
11 pounds; and

12 2. The total gross weight in pounds imposed thereon by a
13 vehicle or combination of vehicles shall not exceed the value
14 calculated in accordance with the Federal Bridge formula imposed by
15 23 U.S.C., Section 127.

16 B. Except as to gross limits, the formula of this section shall
17 not apply to a truck-tractor and dump semitrailer when used as a
18 combination unit. In no event shall the maximum load in pounds
19 carried by any set of tandem axles exceed thirty-four thousand
20 (34,000) pounds. Any vehicle operating with split tandem axles or
21 tri-axles shall adhere to the formula.

22 C. Except for loads moving under special permits as provided in
23 this title, no department or agency of this state or any county,
24 city, or public entity thereof shall pay for any material that

1 exceeds the legal weight limits moving in interstate or intrastate
2 commerce in excess of the legal load limits of this state.

3 D. 1. An annual special overload permit may be purchased for
4 vehicles transporting roll-off recycle metals, rock, sand, gravel,
5 coal, flour, timber, pulpwood, and chips in their natural state, oil
6 field fluids, oil field equipment or equipment used in oil and gas
7 well drilling or exploration, and vehicles transporting grain,
8 fertilizer, cottonseed, cotton, livestock, peanuts, canola,
9 sunflowers, soybeans, feed, any other raw agricultural products, and
10 any other unprocessed agricultural products, if the following
11 conditions are met:

12 a. the vehicles are registered for the maximum allowable
13 rate,

14 b. the vehicles do not exceed five percent (5%) of the
15 gross limits set forth in subsection A of this
16 section,

17 c. the vehicles do not exceed eight percent (8%) of the
18 axle limits set forth in subsection A of this section,

19 d. no component of the vehicles exceeds the
20 manufacturer's component weight rating as shown on the
21 vehicle certification label or tag, and

22 e. the vehicles operating pursuant to the provisions of
23 this paragraph will not be allowed to operate on the
24 National System of Interstate and Defense Highways.

1 2. Vehicles operating pursuant to this section must register
2 for the maximum allowable rate and additionally shall purchase a
3 nontransferable annual special overload permit from the Department
4 of Transportation for a fee of ~~Three Hundred Fifty Dollars (\$350.00)~~
5 Four Hundred Sixty Dollars (\$460.00). All monies collected shall be
6 deposited to the credit of the Highway Construction and Maintenance
7 Fund.

8 E. 1. Oversize or overweight vehicles used for specialized
9 transportation if the maximum weight does not exceed twenty-three
10 thousand (23,000) pounds on any single axle and:

11 a. is a dual lane trailer with dual lane axles and the
12 width of the transport vehicle or trailer exceeds
13 twelve (12) feet in width, or

14 b. the overall gross vehicle weight of a single trailer
15 meets or exceeds three hundred thousand (300,000)
16 pounds, originates or terminates at the Tulsa Port of
17 Catoosa, and the trip is confined within a thirty-mile
18 radius of the Port.

19 2. Permit fees for oversize or overweight vehicles used for
20 specialized transportation shall be in accordance with subsection A
21 of Section 14-116 of this title.

22 3. Vehicles operating pursuant to the provisions of this
23 paragraph will not be allowed to operate on the National System of
24 Interstate and Defense Highways.

1 F. Exceptions to this section will be:

2 1. Utility or refuse collection vehicles used by counties,
3 cities, or towns or by private companies contracted by counties,
4 cities, or towns if the following conditions are met:

5 a. calculation of weight for a utility or refuse
6 collection vehicle shall be "Gross Vehicle Weight".
7 The "Gross Vehicle Weight" of a utility or refuse
8 collection vehicle may not exceed the otherwise
9 applicable weight by more than fifteen percent (15%).

10 The weight on individual axles must not exceed the
11 manufacturer's component rating which includes axle,
12 suspension, wheels, rims, brakes, and tires as shown
13 on the vehicle certification label or tag, and

14 b. utility or refuse collection vehicles operated under
15 these exceptions will not be allowed to operate on
16 interstate highways;

17 2. A combination of a wrecker or tow vehicle and another
18 vehicle or vehicle combination if:

19 a. the service provided by the wrecker or tow vehicle is
20 needed to remove disabled, abandoned, or accident-
21 damaged vehicles, and

22 b. the wrecker or tow vehicle is towing the other vehicle
23 or vehicle combination directly to the nearest
24

1 appropriate place of repair, terminal, or vehicle
2 storage facility;

3 3. A vehicle operating pursuant to the provisions of paragraph
4 2 of this subsection shall not be allowed to operate on the National
5 System of Interstate and Defense Highways unless it is a covered
6 heavy-duty tow and recovery vehicle that:

7 a. is transporting a disabled vehicle from the place
8 where the vehicle became disabled to the nearest
9 appropriate repair facility, and

10 b. has a gross vehicle weight that is equal to or exceeds
11 the gross vehicle weight of the disabled vehicle being
12 transported; and

13 4. On the interstate highway system a vehicle designed to be
14 used under emergency conditions to transport personnel and equipment
15 and to support the suppression of fires and mitigation of other
16 hazardous situations with a vehicle weight limit up to a maximum
17 gross vehicle weight of eighty-six thousand (86,000) pounds with
18 less than:

19 a. twenty-four thousand (24,000) pounds on a single
20 steering axle,

21 b. thirty-three thousand five hundred (33,500) pounds on
22 a single drive axle,

23 c. sixty-two thousand (62,000) pounds on a tandem axle,
24 or

d. fifty-two thousand (52,000) pounds on a tandem rear drive steer axle.

G. 1. Any vehicle utilizing an auxiliary power or idle reduction technology unit in order to promote reduction of fuel use and emissions because of engine idling shall be allowed an additional four hundred (400) pounds total to the total gross weight limits set by this section.

2. To be eligible for the exception provided in this subsection, the operator of the vehicle must obtain written proof or certification of the weight of the auxiliary power or idle reduction technology unit and be able to demonstrate or certify that the idle reduction technology is fully functional.

3. Written proof or certification of the weight of the auxiliary power or idle reduction technology unit must be available to law enforcement officers if the vehicle is found in violation of applicable weight laws. The additional weight allowed cannot exceed four hundred (400) pounds or the actual proven or certified weight of the unit, whichever is less.

H. On the Interstate Highway System, a vehicle carrying fluid milk products shall be considered a load that cannot be easily dismantled or divided, or "nondivisible".

I. Utility, refuse collection vehicles or a combination of a wrecker or tow vehicle as described in paragraphs 1 and 2 of subsection F of this section operating under exceptions shall

1 purchase an annual special overload permit from the Department of
2 Transportation for ~~One Hundred Dollars (\$100.00)~~ One Hundred Thirty
3 Dollars (\$130.00). All monies collected shall be deposited to the
4 credit of the Highway Construction and Maintenance Fund.

5 SECTION 5. AMENDATORY 47 O.S. 2021, Section 14-116, as
6 last amended by Section 6, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
7 2025, Section 14-116), is amended to read as follows:

8 Section 14-116. A. The Executive Director of the Department of
9 Transportation shall charge a minimum permit fee of ~~Forty Dollars~~
10 ~~(\$40.00)~~ Fifty-five Dollars (\$55.00) for any permit issued pursuant
11 to the provisions of Section 14-101 et seq. of this title. In
12 addition to the permit fee, the Executive Director of the Department
13 of Transportation shall charge a fee of ~~Ten Dollars (\$10.00)~~ Fifteen
14 Dollars (\$15.00) for each thousand pounds in excess of the legal
15 load limit. The Executive Director of the Department of
16 Transportation shall establish any necessary rules for collecting
17 the fees.

18 B. The Department of Transportation is authorized to establish
19 an escrow account system for the payment of permit fees. Authorized
20 motor carriers meeting established credit requirements may
21 participate in the escrow account system for permits purchased from
22 all size and weight permit offices in this state. Carriers not
23 choosing to participate in the escrow account system shall be
24 required to make payment of the required fee or fees upon purchase

1 of each permit as required by law. All monies collected through the
2 escrow account system shall be deposited to a special account of the
3 Department of Transportation and placed in the custody of the State
4 Treasurer. Proceeds from permits purchased using the escrow account
5 system shall be distributed as provided for in subsection H of this
6 section. However, fees collected through such accounts for the
7 electronic transmission, transfer or delivery of permits, as
8 provided for in Section 14-118 of this title, shall be credited to
9 the Weigh Station Improvement Revolving Fund established pursuant to
10 Section 1167 of this title.

11 C. 1. Application for permits shall be made a reasonable time
12 in advance of the expected time of movement of such vehicles. For
13 emergencies affecting the health or safety of persons or a
14 community, permits may be issued for immediate movement.

15 2. Size and weight permit offices in all districts where
16 applicable shall issue permits to authorize carriers by telephone
17 during weekdays.

18 D. No overweight permit shall be valid until all license taxes
19 due the State of Oklahoma have been paid.

20 E. No permit violation shall be deemed to have occurred when an
21 oversize or overweight movement is made pursuant to a permit whose
22 stated weight or size exceeds the actual load.

23 F. Any permit issued for a truck or truck-tractor operating in
24 combination with a trailer or a semitrailer shall contain only the

1 license plate number for the truck or truck-tractor if the permittee
2 provides to the Department of Transportation a list containing the
3 license plate number, and such other information as the Department
4 of Transportation may prescribe by rule, for each trailer or
5 semitrailer which may be used for movement with the permit. When
6 the permittee provides the list described in this subsection, the
7 license plate number for any trailer or semitrailer to be moved with
8 the permit shall not be included on the permit; provided, a trailer
9 or semitrailer which is not on the list shall not be authorized to
10 be used for movement with the permit. It shall be the
11 responsibility of the permittee to ensure the list provided to the
12 Department of Transportation is maintained and updated with any
13 fleet changes. The Department of Transportation shall adopt any
14 rules deemed necessary to administer the provisions of this
15 subsection.

16 G. The first deliverer of motor vehicles designated truck
17 carriers or well service carriers manufactured in Oklahoma shall not
18 be required to purchase an overweight permit when being delivered to
19 the first purchaser.

20 H. Except as provided in Section 14-122 of this title, the
21 first One Million Two Hundred Sixteen Thousand Dollars
22 (\$1,216,000.00) of proceeds from both the permit fees and the
23 overweight permit fees imposed pursuant to subsection A of this
24 section collected monthly shall be apportioned by Service Oklahoma

1 as provided in Section 1104 of this title. For the fiscal year
2 beginning July 1, 2022, and all subsequent years, the next Two
3 Million Five Hundred Thousand Dollars (\$2,500,000.00) of proceeds
4 from both the permit fees and the overweight permit fees imposed
5 pursuant to subsection A of this section collected monthly shall be
6 remitted to the Department of Public Safety for the purpose of
7 staffing the port of entry weigh stations with Department of Public
8 Safety port of entry officers whose powers and duties shall be
9 specified by the Department of Public Safety through the
10 promulgation of rules. For the fiscal year beginning July 1, 2017,
11 and all subsequent years, all proceeds collected from both the
12 permit fees and the overweight permit fees imposed pursuant to
13 subsection A of this section in excess of Three Million Seven
14 Hundred Sixteen Thousand Dollars (\$3,716,000.00) shall be deposited
15 in the Weigh Station Improvement Revolving Fund as provided in
16 Section 1167 of this title for the purpose set forth in that section
17 and may be used for motor carrier permitting systems and motor
18 carrier safety and enforcement.

19 SECTION 6. AMENDATORY 47 O.S. 2021, Section 14-118, as
20 amended by Section 11, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
21 Section 14-118), is amended to read as follows:

22 Section 14-118. A. 1. Pursuant to such rules as may be
23 prescribed by Oklahoma agencies of jurisdiction, Oklahoma motor
24 carriers may engage in any activity in which carriers subject to the

1 jurisdiction of the federal government may be authorized by federal
2 legislation to engage. Provided further, the Transportation
3 Commission shall formulate for the State Trunk Highway System,
4 including the National System of Interstate and Defense Highways,
5 and for all other highways or portions thereof, rules governing the
6 movement of vehicles or loads which exceed the size or weight
7 limitations specified by the provisions of this chapter.

8 2. Such rules shall be the basis for the development of a
9 system by the Executive Director of the Department of Transportation
10 for the issuance of permits for the movement of oversize or
11 overweight vehicles or loads. Such system shall include, but not be
12 limited to, provisions for duration, seasonal factors, hours of the
13 day or days when valid, special requirements as to flags, flagmen
14 and warning or safety devices and other such items as may be
15 consistent with the intent of this section. The permit system shall
16 include provisions for the collection of permit fees as well as for
17 the issuance of the permits by telephone, electronic transfer or
18 such other methods of issuance as may be deemed feasible.

19 3. The Department of Transportation is authorized to charge a
20 fee of ~~Two Dollars (\$2.00)~~ Three Dollars (\$3.00) for each permit
21 requested to be issued by facsimile machine or by any other means of
22 electronic transmission, transfer or delivery. The fee shall be in
23 addition to any other fee or fees assessed for the permit. The fee
24 shall be deposited in the State Treasury to the credit of the

1 Department of Transportation and the monies shall be expended by the
2 Department of Transportation solely for the purposes provided for in
3 this chapter.

4 4. It is the purpose of this section to permit the movement of
5 necessary overweight and oversize vehicles or loads consistent with
6 the following obligations:

7 a. protection of the motoring public from potential
8 traffic hazards,

9 b. protection of highway surfaces, structures, and
10 private property, and

11 c. provision for normal flow of traffic with a minimum of
12 interference.

13 B. The Transportation Commission shall prepare and publish a
14 map of this state showing by appropriate symbols the various highway
15 structures and bridges in terms of maximum size and weight
16 restrictions. This map shall be titled "Oklahoma Load Limit Map"
17 and shall be revised periodically to maintain a reasonably current
18 status and in no event shall a period of two (2) years lapse between
19 revisions and publication of the printed version of the Oklahoma
20 Load Limit Map. This map shall also be made available by the
21 Department of Transportation on the Internet, and in no event shall
22 a period of six (6) months lapse between revisions of the
23 information provided on the Internet. Provided, further, the
24 Secretary of the Department of Transportation shall prepare and

1 publish a map of this state showing the advantages of this state as
2 a marketing, warehousing and distribution network center for motor
3 transportation sensitive industries.

4 C. The Executive Director of the Department of Transportation,
5 or an authorized representative, shall have the authority, within
6 the limitations formulated under provisions of this chapter, to
7 issue, withhold or revoke special permits for the operation of
8 vehicles or combinations of vehicles or loads which exceed the size
9 or weight limitations of this chapter. Every such permit shall be
10 carried in the vehicle or combination of vehicles to which it refers
11 and shall be open to inspection by any law enforcement officer or
12 authorized agent of any authority granting such permit, and no
13 person shall violate any of the terms or conditions of such special
14 permit.

15 D. It shall be permissible in the transportation of empty
16 trucks on any road or highway to tow by use of saddlemounts, i.e.,
17 mounting the front wheels of one vehicle on the bed of another
18 leaving the rear wheels only of such towed vehicle in contact with
19 the roadway. One vehicle may be fullmounted on the towing or towed
20 vehicles engaged in any driveaway or towaway operation. No more
21 than three saddlemounts may be permitted in such combinations. The
22 towed vehicles shall be securely fastened and operated under the
23 applicable safety requirements of the United States Department of
24 Transportation and such combinations shall not exceed an overall

1 length of seventy-five (75) feet. Provided, a driveaway saddlemount
2 with fullmount vehicle transporter combination may reach an overall
3 length of ninety-seven (97) feet on the National Network of
4 Highways.

5 E. The Executive Director of the Department of Transportation,
6 upon application of any person engaged in the transportation of
7 forest products in the raw state, which is defined to be tree-length
8 logs moving from the forest directly to the mill, or upon
9 application of any person engaged in the hauling for hire or for
10 resale of round baled hay with a total outside width of eleven (11)
11 feet or less, shall issue an annual permit, upon payment of a fee of
12 ~~Twenty-five Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00) each year,
13 authorizing the operation by such persons of such motor vehicle load
14 lengths and widths upon the highways of this state except on the
15 National System of Interstate and Defense Highways. Provided,
16 however, the restriction on use of the National System of Interstate
17 and Defense Highways shall not be applicable to persons engaged in
18 the hauling of round baled hay with a total outside width of eleven
19 (11) feet or less.

20 F. The Executive Director of the Department of Transportation,
21 upon application of any person engaged in the transportation of
22 overwidth or overheight equipment used in soil conservation work
23 with a total outside width of twelve (12) feet or less, shall issue
24 an annual permit, upon payment of a fee of ~~Twenty-five Dollars~~

1 ~~(\$25.00)~~ Thirty-five Dollars (\$35.00) each year, authorizing the
2 operation by such persons of such motor vehicle load lengths and
3 widths upon the highways of this state except on the National System
4 of Interstate and Defense Highways.

5 G. Farm equipment including, but not limited to, implements of
6 husbandry as defined in Section 1-125 of this title shall be
7 exempted from the requirement for special permits due to size. Such
8 equipment may move on any highway, except those highways which are
9 part of the National System of Interstate and Defense Highways,
10 during the hours of darkness and shall be subject to the
11 requirements as provided in Section 12-215 of this title. In
12 addition to those requirements, tractors pulling machinery over
13 thirteen (13) feet wide must have two amber flashing warning lamps
14 symmetrically mounted, laterally and widely spaced as practicable,
15 visible from both front and rear, mounted at least thirty-nine (39)
16 inches high.

17 H. Any rubber-tired road construction vehicle including rubber-
18 tired truck cranes and special mobilized machinery either self-
19 propelled or drawn carrying no load other than component parts
20 safely secured to the machinery and its own weight, but which is
21 overweight by any provisions of this chapter, shall be authorized to
22 move on the highways of this state. Movement of such vehicles shall
23 be authorized on the National System of Interstate and Defense
24 Highways only by special permit secured from the Executive Director

1 of the Department of Transportation or an authorized representative
2 upon determination that the objectives of this section will be
3 served by such a permit and that federal weight restrictions will
4 not be violated. The special permit shall be:

5 1. A single-trip permit issued under the provisions of this
6 section and Section 14-116 of this title; or

7 2. A special annual overweight permit which shall be issued for
8 one calendar year period upon payment of a fee of ~~Sixty Dollars~~
9 ~~(\$60.00)~~ Eighty-five Dollars (\$85.00).

10 The weight of any such vehicle shall not exceed six hundred
11 fifty (650) pounds multiplied by the nominal width of the tire. The
12 vehicle shall be required to carry the safety equipment adjudged
13 necessary for the health and welfare of the driving public. If any
14 oversized vehicle does not come under the other limitations of the
15 present laws, it shall be deemed that the same shall travel only
16 between the hours of sunrise and sunset. The vehicle, being
17 overweight but of legal dimension, shall be allowed continuous
18 travel. The vehicles, except special mobilized machinery, shall be
19 exempt from the laws of this state relating to motor vehicle
20 registration, licensing or other fees or taxes in lieu of ad valorem
21 taxes.

22 I. 1. When such machinery has a width greater than eight and
23 one-half (8 1/2) feet, or a length, exclusive of load, of forty-five
24 (45) feet, or a height in excess of thirteen and one-half (13 1/2)

1 feet, then the permit may restrict movement to a fifty-mile radius
2 from an established operating base, and may designate highways to be
3 traveled, hours of travel and when flagmen may be required to
4 precede or follow the equipment.

5 2. Possession of a permit shall in no way be construed as
6 exempting such equipment from the authority of the Executive
7 Director of the Department of Transportation to restrict use of
8 particular highways, nor shall it exempt owners or operators of such
9 equipment from the responsibility for damage to highways caused by
10 movement of the equipment. Nothing in this subsection shall apply
11 to machinery used in highway construction or road material
12 production.

13 3. Upon the issuance of a special mobilized machinery driveway
14 permit as provided in this subsection, special mobilized machinery
15 manufactured in Oklahoma shall be permitted to move upon the
16 highways of this state from the place of manufacture to the state
17 line for delivery and exclusive use outside the state, and may be
18 temporarily returned to Oklahoma for modification and repair, with
19 subsequent movement back out of the state. Special driveway
20 permits for such movements shall be issued by the Executive Director
21 of the Department of Transportation, who may act through designated
22 agents, upon the payment of a fee in the amount of ~~Fifteen Dollars~~
23 ~~(\$15.00)~~ Twenty Dollars (\$20.00) for each movement.

1 4. The size of the special mobilized machinery shall not be
2 such as to create a safety hazard in the judgment of the Executive
3 Director of the Department of Transportation. Permits for such
4 special mobilized machinery shall specify a maximum permissible road
5 speed of sixty (60) miles per hour, designate safety equipment to be
6 carried and may exclude use of highways of the interstate system.

7 5. When such equipment has a width greater than eight and one-
8 half (8 1/2) feet, or a length exclusive of load of forty-five (45)
9 feet, or a height in excess of thirteen and one-half (13 1/2) feet,
10 the permit may designate highways to be traveled, hours of travel
11 and when flagmen may be required to precede or follow the equipment.

12 6. Possession of a special driveaway permit shall in no way be
13 construed as exempting such equipment from the authority of the
14 Executive Director of the Department of Transportation to restrict
15 use of particular highways, nor shall it exempt the owners or
16 operators of such equipment from the responsibility for damage to
17 highways caused by the movement of such equipment.

18 SECTION 7. AMENDATORY 47 O.S. 2021, Section 14-120, as
19 amended by Section 13, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
20 Section 14-120), is amended to read as follows:

21 Section 14-120 A. Manufactured items, with the exception of
22 manufactured homes as defined in Section 1102 of this title and
23 industrialized housing as described in subsection B of Section 14-
24

1 103A of this title, exceeding sixteen (16) feet but not exceeding
2 twenty-three (23) feet in width traveling:

3 1. From a point of manufacture in this state to a point of
4 delivery in this state or to a point of delivery in another state;
5 or

6 2. From a point of manufacture outside this state to a point of
7 delivery in this state or to a point of delivery in another state
8 shall be permitted, upon receipt of a special movement permit issued
9 under the provisions of subsection B of this section, to travel on
10 any state or U.S. highway in Oklahoma. Provided, however, the
11 Executive Director of the Department of Transportation is authorized
12 to allow such items in excess of twenty-three (23) feet in width to
13 travel on such highway if it is in the best interest of the state
14 and a special moving permit has been issued. Provided, further,
15 that no such load in excess of the limitations set forth in the
16 applicable United States Code shall be permitted to travel upon any
17 portion of the National System of Interstate and Defense Highways.

18 B. Every person desiring to transport manufactured items
19 pursuant to the provisions of this section shall apply to the
20 Department of Transportation for a special movement permit on an
21 application form prescribed by the Department. Upon approval of the
22 application by the Department of Transportation, a special movement
23 permit shall be issued for a fee of ~~Five Hundred Dollars (\$500.00)~~
24 Seven Hundred Fifteen Dollars (\$715.00). Except as provided in

1 Section 14-122 of this title, monies received from such special
2 movement permit fees shall be deposited in the State Treasury to the
3 credit of the General Revenue Fund. A permit issued pursuant to the
4 provisions of this subsection shall expire upon the completion of
5 one trip specified in subsection A of this section. The special
6 movement permit, and fee related thereto, shall be in addition to
7 the permit and fees required by Section 14-116 of this title.

8 C. Highway escorts shall be required for transportation of
9 items pursuant to the provisions of this section according to rules
10 and regulations prescribed by the Department of Transportation.

11 SECTION 8. AMENDATORY 47 O.S. 2021, Section 14-121, as
12 amended by Section 16, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
13 Section 14-121), is amended to read as follows:

14 Section 14-121. A. No person shall operate a special
15 combination vehicle within this state without a special combination
16 vehicle permit for the vehicle issued by the Department of
17 Transportation. Such permit may be issued for operation upon
18 Federal Aid Interstate Highways or four-lane divided Federal Aid
19 Primary Highways and for access or egress between points of origin
20 or destination.

21 B. The Executive Director of the Department of Transportation
22 shall promulgate rules for the issuance of special combination
23 vehicle permits and shall collect an annual fee of ~~Two Hundred Forty~~
24 ~~Dollars (\$240.00)~~ Three Hundred Forty-five Dollars (\$345.00) for

1 each such permit issued. Except as provided in Section 14-122 of
2 this title, fees collected pursuant to this section shall be
3 remitted to the State Treasurer to be credited to the General
4 Revenue Fund in the State Treasury.

5 C. For the purposes of this section, a special combination
6 vehicle shall consist of a truck-tractor semitrailer combination
7 towing two complete trailers or semitrailers. No semitrailer or
8 trailer used in such a combination shall have a length greater than
9 twenty-nine (29) feet nor shall a special combination vehicle exceed
10 the weight limitations imposed by Sections 14-109 and 14-116 of this
11 title.

12 SECTION 9. AMENDATORY 69 O.S. 2021, Section 1521, as
13 amended by Section 1, Chapter 460, O.S.L. 2025 (69 O.S. Supp. 2025,
14 Section 1521), is amended to read as follows:

15 Section 1521. A. There is hereby created in the State Treasury
16 a fund to be known as the "Rebuilding Oklahoma Access and Driver
17 Safety Fund". The fund shall be a continuing fund, not subject to
18 fiscal year limitations, and shall consist of all appropriations and
19 transfers made by the Legislature. All monies accruing to the
20 credit of the fund are hereby appropriated and may be budgeted and
21 expended by the Department of Transportation for the purposes
22 authorized by subsection D of this section in amounts as authorized
23 by the Oklahoma Legislature. Expenditures from the fund shall be
24 made upon warrants issued by the State Treasurer against claims

1 filed as prescribed by law with the Director of the Office of
2 Management and Enterprise Services for approval and payment.

3 B. Beginning July 1, 2021, except for an amount equivalent to
4 the amount of revenue apportioned to the Rebuilding Oklahoma Access
5 and Driver Safety Fund pursuant to Section 500.4B of Title 68 and
6 Section 1104 of Title 47 of the Oklahoma Statutes and from other
7 sources apportioned to the Fund by law, there shall be apportioned
8 to the funds specified in this subsection from the monies that would
9 otherwise be apportioned to the General Revenue Fund by Section 2352
10 of Title 68 of the Oklahoma Statutes from the revenues derived
11 pursuant to subsections A, B and E of Section 2355 of Title 68 of
12 the Oklahoma Statutes amounts as follows:

13 1. Subject to any reductions required by subsection C of this
14 section, there shall be apportioned to the Rebuilding Oklahoma
15 Access and Driver Safety Fund:

16 a. for the fiscal year beginning July 1, 2021, and for
17 each fiscal year thereafter, Eighty Million Dollars
18 (\$80,000,000.00), which shall be allocated and used by
19 the Department of Transportation first for the purpose
20 of making any required payments for principal,
21 interest or other costs of borrowing with respect to
22 the obligations issued pursuant to Section 341 of
23 Title 73 of the Oklahoma Statutes and after any such
24

1 required payment has been made then for the purposes
2 otherwise authorized by this section, plus

3 b. the total amount apportioned to the Rebuilding
4 Oklahoma Access and Driver Safety Fund for the
5 preceding fiscal year which, except for the amount
6 prescribed by subparagraph a of this paragraph, shall
7 be apportioned before any other amount is apportioned
8 pursuant to Section 2352 of Title 68 of the Oklahoma
9 Statutes, plus

10 c. an additional amount that is required in order for the
11 total apportionment to the Rebuilding Oklahoma Access
12 and Driver Safety Fund from all sources for such
13 fiscal year to equal:

14 (1) Five Hundred Seventy-five Million Dollars
15 (\$575,000,000.00) for the fiscal year beginning
16 July 1, 2021,

17 (2) Five Hundred Ninety Million Dollars
18 (\$590,000,000.00) for the fiscal year beginning
19 July 1, 2022, and

20 (3) Six Hundred Ten Million Dollars (\$610,000,000.00)
21 for the fiscal year beginning July 1, 2025, and
22 for each fiscal year thereafter.

23 All amounts apportioned pursuant to this paragraph shall be
24 divided into twelve equal amounts to be apportioned each month

1 during the fiscal year except the amount specified in subparagraph a
2 of this paragraph which amount shall be allocated in its full amount
3 in cash not later than July 30 each year or such later date as may
4 be required in order for the amount to be allocated in cash; and

5 2. For each fiscal year after the apportionments required by
6 paragraph 1 of this subsection have been made:

7 a. the next Two Million Dollars (\$2,000,000.00) shall be
8 apportioned to the Oklahoma Tourism and Passenger Rail
9 Revolving Fund created pursuant to Section 325 of
10 Title 66 of the Oklahoma Statutes to be used for
11 capital and operating costs for the "Heartland Flyer"
12 rail project, and

13 b. the next Three Million Dollars (\$3,000,000.00) shall
14 be apportioned to the Public Transit Revolving Fund
15 created pursuant to Section 4031 of this title to be
16 used for purposes authorized by law other than the
17 purpose described by subparagraph a of this paragraph.

18 All amounts apportioned pursuant to this paragraph shall be
19 divided into twelve equal amounts to be apportioned each month
20 during the fiscal year.

21 C. In the event that the Director of the Office of Management
22 and Enterprise Services declares a General Revenue Fund revenue
23 failure pursuant to Section 34.49 of Title 62 of the Oklahoma
24 Statutes, and agency allocations are reduced pursuant to the

1 provisions of Section 34.49 of Title 62 of the Oklahoma Statutes,
2 the amounts that would otherwise be apportioned to the ROADS Fund
3 by:

4 1. Subparagraph a of paragraph 1 of subsection B of this
5 section, only to the extent that the amount is not required for debt
6 service related to the obligations authorized pursuant to Section
7 341 of Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of
8 the Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896
9 of the 1st Session of the 58th Oklahoma Legislature;

10 2. Subparagraphs b and c of paragraph 1 of subsection B of this
11 section; and

12 3. Subparagraphs a and b of paragraph 2 of subsection B of this
13 section,
14 shall be reduced by a percentage equal to that required of the
15 General Revenue Fund appropriations to state agencies and such
16 reductions shall occur during the entire fiscal year and for any
17 month during which such reductions are required by the Office of
18 Management and Enterprise Services and by the same percentage as
19 that required of the agencies for such General Revenue Fund
20 appropriations.

21 D. The Department of Transportation shall use the monies in the
22 Rebuilding Oklahoma Access and Driver Safety Fund for:

23 1. The construction and maintenance of state roads, bridges and
24 highways;

1 2. The direct expenses of operating and maintaining the state
2 highway system, including bridges;

3 3. Direct expenses incurred in constructing, repairing, and
4 maintaining state highways, farm-to-market roads, county highways
5 and bridges as authorized by law;

6 4. Matching federal funds;

7 5. The purchase of materials, tools, machinery, motor vehicles,
8 and equipment necessary or convenient for the construction and
9 maintenance of the state highway system and bridges;

10 6. Debt service incurred prior to January 1, 2006, for Capital
11 Improvement Program bonds sold pursuant to Section 2001 of this
12 title; and

13 7. Debt service incurred on or after July 1, 2009, with respect
14 to obligations authorized to be issued pursuant to Section 341 of
15 Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of the
16 Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896 of
17 the 1st Session of the 58th Oklahoma Legislature; ~~and~~

18 ~~8. For fiscal years beginning on or after July 1, 2025, and~~
19 ~~ending on or prior to June 30, 2033, Twenty Million Dollars~~
20 ~~(\$20,000,000.00) per fiscal year for the construction, repair, and~~
21 ~~maintenance of weigh stations on the state highway system.~~

22 E. From the monies allocated pursuant to the provisions of
23 subparagraph a of paragraph 1 of subsection B of this section each
24 fiscal year, the Department of Transportation shall make payments

1 required for the payment of principal, interest and other costs
2 related to the obligations issued by the Oklahoma Capitol
3 Improvement Authority as authorized by Section 341 of Title 73 of
4 the Oklahoma Statutes, Section 350 of Title 73 of the Oklahoma
5 Statutes and Section 1 of Enrolled House Bill No. 2896 of the 1st
6 Session of the 58th Oklahoma Legislature, and such payments shall be
7 made by the Department each fiscal year before such monies are used
8 for any other purpose.

9 SECTION 10. This act shall become effective November 1, 2026.
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